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County of Alameda
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SUPERIOR COURT OF THE STATE OF CALIFORNIA

COUNTY OF ALAMEDA

BRENDAN NGEHSI NEWANFORBI, Petitioner, v. **CALIFORNIA HIGHWAY PATROL; G. SERRATO, in his official capacity as Captain and Commander of the CHP Dublin Area; GARY PAUL, in his official capacity as Lieutenant of the CHP Dublin Area; ERIC DUTRA, in his official capacity as Sergeant of the CHP Dublin Area; and DOES 1 through 10, inclusive,** Respondents.	**Case No. 26CV191136** **PETITIONER'S OPPOSITION TO DEMURRER TO PETITION FOR WRIT OF MANDATE; MEMORANDUM OF POINTS AND AUTHORITIES** Date: August 28, 2026 Time: 9:00 a.m. **Assigned for All Purposes to:** Hon. Jenna M. Whitman, Dept. 25 Action Filed: May 29, 2026 Trial Date: Not set

INTRODUCTION

The demurrer can be resolved on settled pleading and statutory-construction principles. CHP's own contemporaneous records—its dashcam audio-video recording, its sworn arrest-investigation report, and its Penal Code section 851.6 detention certificate stating that no accusatory pleading was filed and reclassifying the incident as a detention only for insufficient grounds for making a criminal complaint—were all placed before the certifying official as part of Petitioner's April 9, 2026 certification request. (Pet. ¶¶ 55-58, Exs. 2-8.) CHP's denial letter does not mention any of them. It does not identify which statutory element of Penal Code section 679.10 it found unsatisfied. It does not name a single enumerated qualifying offense. It does not

acknowledge the statutory rebuttable presumption of helpfulness. (Pet. ¶ 62.)

Respondent's demurrer asks the Court to do three things it cannot do at the pleading stage. **First,** it asks the Court to resolve disputed factual questions—whether Petitioner was the victim of qualifying criminal activity—that are merits questions for the writ hearing. **Second,** it asks the Court to adopt a construction of Penal Code section 679.10, subdivision (i)(2) that would eliminate the written-explanation requirement AB 1261 enacted—reading the first sentence of subdivision (i)(2) out of the statute entirely. **Third,** it asks the Court to import into subdivision (h) a threshold requirement—that the agency must first request cooperation before the presumption of helpfulness attaches—that appears nowhere in the text and would place the agency in sole control of whether the presumption ever operates.

Petitioner does not ask this Court, on demurrer, to decide disputed facts or to order execution of Form I-918, Supplement B on the pleadings alone. Petitioner seeks judicial review of CHP's compliance with the mandatory procedures governing a denial under section 679.10—including the duty to apply the governing statutory framework, consider the helpfulness presumption, and provide an adequate written explanation. At minimum, the appropriate remedy is vacatur and remand for a new determination under the correct legal standards. The Petition alleges each element of each cause of action; the demurrer should be overruled. In the alternative, leave to amend should be freely granted.

STATEMENT OF THE CASE

The Petition sets forth the facts in detail (Pet. ¶¶ 1-71) and Petitioner will not restate them. In brief: On November 1, 2024, CHP officers subjected Petitioner to a traffic stop, arrest, handcuffing, and involuntary blood draw on Interstate 580 East in Livermore, Alameda County. (Pet. ¶¶ 33-46.) Four days later, CHP issued a Penal Code section 851.6 detention certificate stating that no accusatory pleading was filed and reclassifying the incident as "a detention only,

not an arrest" for "insufficient grounds for making a criminal complaint." (Pet. ¶ 42, Ex. 7.) No criminal charges were ever filed.

On April 9, 2026, Petitioner submitted to CHP a formal request for Form I-918, Supplement B certification, together with a pre-completed Form B, an eight-page supporting legal-and-evidentiary memorandum identifying—by dashcam timestamp—four specific contradictions between CHP's arrest-investigation report and CHP's own dashcam recording, a verbatim transcript of the dashcam, the CHP arrest report, the section 851.6 detention certificate, and additional documentary exhibits. (Pet. ¶¶ 55-58, Exs. 2-8.) Eleven days later, on April 20, 2026, CHP issued the one-page denial that did not disclose how it applied the statutory criteria to the materials identified in Petitioner's request. (Pet. ¶¶ 60-63, Ex. 1.)

The Petition asserts four causes of action: (1) failure to perform the mandatory duty to certify under section 679.10, subdivision (b); (2) failure to perform the ministerial reason-giving duty under section 679.10, subdivisions (g) and (i)(2); (3) failure to apply the rebuttable presumption of helpfulness under section 679.10, subdivision (h); and (4) declaratory relief. (Pet. ¶¶ 72-95.)

LEGAL STANDARD

A demurrer tests the legal sufficiency of the pleading. The Court "treat[s] the demurrer as admitting all material facts properly pleaded, but not contentions, deductions or conclusions of fact or law." (*Blank v. Kirwan* (1985) 39 Cal.3d 311, 318.) Facts appearing in exhibits attached to the pleading and incorporated by reference are also accepted as true. (*Barnett v. Fireman's Fund Ins. Co.* (2001) 90 Cal.App.4th 500, 505.) A demurrer must be overruled if the pleading states a cause of action on any theory. (*Longshore v. County of Ventura* (1979) 25 Cal.3d 14, 21.) The same standards govern demurrers to mandamus petitions. (*Pinto Lake MHP LLC v. County of Santa Cruz* (2020) 56 Cal.App.5th 1006, 1012.) If any defect can be cured by amendment, leave

to amend must be granted. (*McKenney v. Purepac Pharmaceutical Co.* (2008) 167 Cal.App.4th 72, 78.)

Under these standards, the Petition survives demurrer because: (a) it alleges CHP failed to apply mandatory statutory standards to CHP's own evidentiary record; (b) it incorporates by reference CHP's own documents—the dashcam transcript, the detention certificate, the arrest report—which support rather than negate the allegations; and (c) it states a justiciable controversy over whether CHP's conclusory denial satisfies section 679.10.

ARGUMENT

I. RESPONDENT'S DEMURRER IMPROPERLY ASKS THE COURT TO RESOLVE DISPUTED MERITS QUESTIONS AT THE PLEADING STAGE.

Respondent's brief repeatedly argues that the underlying incident does not, in fact, constitute qualifying criminal activity. (See Dem. MPA at 13-15.) That argument mistakes the office of a demurrer. On demurrer, a court "may not consider . . . the truth of the allegations, but only whether they state a cause of action." (*Committee on Children's Television, Inc. v. General Foods Corp.* (1983) 35 Cal.3d 197, 213-214.) The Petition alleges that Petitioner is the victim of enumerated qualifying offenses and cites the specific documentary evidence supporting each. (Pet. ¶¶ 4, 34-46, 62(a)-(h), 74-76.) Whether that record ultimately proves qualifying criminal activity is a merits question for the writ hearing—not a pleading question for demurrer.

The Petition incorporates by reference fourteen exhibits, including the denial letter itself (Ex. 1), Petitioner's eight-page legal analysis identifying four contradictions by dashcam timestamp (Ex. 3), the verbatim dashcam transcript (Ex. 5), the CHP arrest report containing the disputed statements (Ex. 6), and the section 851.6 detention certificate (Ex. 7). On demurrer, the Court must consider these exhibits as part of the pleading. (*Barnett, supra,* 90 Cal.App.4th at p.

505.) These are not mere allegations; they are documents in CHP's own custody that were placed before the certifying official and are admitted for all purposes on demurrer. Respondent's insistence that Petitioner's transcript "undermines" his allegations (Dem. MPA at 15) asks the Court to weigh competing inferences from documents—precisely what demurrer law prohibits.

This conclusion is reinforced by a parallel federal proceeding. In *Newanforbi v. Serrato*, No. 4:26-cv-05953-ASK (N.D. Cal.), the United States District Court reviewed substantially the same underlying allegations—based on the same dashcam recording, the same arrest report, and the same detention certificate—and concluded at screening that Petitioner's pleaded facts plausibly support inferences of false imprisonment based on fabricated evidence and a plausible retaliation claim arising from the certification denial itself. (Order dated June 29, 2026, at 3-4.) That order is not binding on this Court and does not decide California mandate law, but it is persuasive authority that Respondent's competing factual inferences do not render Petitioner's allegations facially deficient at the pleading stage.

II. THE FIRST CAUSE OF ACTION STATES A CLAIM: SECTION 679.10 DOES NOT PERMIT CHP TO DENY CERTIFICATION UNDER AN UNSTATED OR LEGALLY ERRONEOUS STANDARD.

Section 679.10 uses mandatory language throughout: a certifying entity "shall process" requests within the statutory deadline (Pen. Code, § 679.10, subd. (j)); "shall fully complete and sign" the Form I-918, Supplement B (*id.*, subd. (i)(1)); and "shall certify victim helpfulness" when the statutory conditions are met (*id.*, subd. (g)(1)). "Shall" is mandatory. (Gov. Code, § 14; *Haggis v. City of Los Angeles* (2000) 22 Cal.4th 490, 498-499; *Common Cause v. Board of Supervisors* (1989) 49 Cal.3d 432, 443.)

Mandamus law distinguishes between the duty to act and the manner of acting. Mandamus "does not lie to compel a public agency to exercise discretionary powers in a particular manner,

only to compel it to exercise them in some manner"—that is, under the legal standards the Legislature has prescribed. (*Common Cause v. Board of Supervisors* (1989) 49 Cal.3d 432, 442.) A public entity likewise "has a ministerial duty to comply with its own rules and regulations where they are valid and unambiguous." (*Kern County Hospital Authority v. Dept. of Corrections & Rehabilitation* (2023) 91 Cal.App.5th 1313, 1325.) *Galzinski v. Somers* (2016) 2 Cal.App.5th 1164 applied these principles to a law enforcement agency: even though the *substance* of a police department's response to a citizen complaint was discretionary, mandamus lay to compel the department to perform its procedural obligations—to conduct an investigation sufficient to support a finding, and to make one of the enumerated findings. (*Id.* at pp. 1171-1173; accord, *CV Amalgamated LLC v. City of Chula Vista* (2022) 82 Cal.App.5th 265, 283 [agency's "failure to follow its own procedures provides the basis for the issuance of a traditional writ of mandate"].) Here the procedural obligations arise not from a published internal procedure but from a statute—a stronger footing still.

Accordingly, even assuming CHP retains fact-finding judgment concerning whether a requestor is a victim of qualifying criminal activity, ordinary mandate reaches CHP's failure to exercise that judgment under the controlling statutory framework, its failure to apply the mandatory presumption, and action taken in derogation of statutory standards. (*Common Cause, supra*, 49 Cal.3d at p. 442; *Cal. Correctional Peace Officers Assn. v. State Personnel Bd.* (1995) 10 Cal.4th 1133, 1154.) The Court need not decide now whether the pleaded record compels certification. It need decide only whether the Petition plausibly alleges that CHP failed to perform, or lawfully exercise, duties section 679.10 imposes.

The Petition alleges the denial: (a) applied an unstated "standard" nowhere found in section 679.10; (b) ignored the enumerated qualifying offenses the statute incorporates by reference from 8 U.S.C. section 1101(a)(15)(U)(iii); (c) failed to address CHP's own detention certificate reflecting that no accusatory pleading was filed—a material agency record submitted with the request; (d) failed to address CHP's own dashcam recording; and (e) gave no explanation

whether it improperly treated the absence of a charge, investigation, or prosecution as dispositive—considerations subdivision (k) prohibits from serving as a basis for refusal. (Pet. ¶¶ 62-63, 74-76.) The Petition plausibly alleges that CHP failed to apply the governing standards to the material records before it. That is sufficient to state a claim under section 1085.

Respondent's reliance on *Catholic Charities CYO v. Chertoff* (N.D. Cal. 2008) 622 F.Supp.2d 865 (Dem. MPA at 8) is misplaced. *Catholic Charities* construed the federal U-visa statute in 2008, before California enacted section 679.10 in 2015 and long before AB 1261's 2024 amendments imposed the procedural obligations at issue here. The Legislature enacted section 679.10 precisely because federal law was permissive and the resulting unfettered discretion had produced systemic under-certification. A pre-statute federal decision does not defeat a state-law writ claim that turns on the state statute's mandatory commands.

Petitioner has also pleaded the two remaining writ elements: a "clear, present and beneficial" right because CHP's denial forecloses access to the certification required to pursue a U-visa petition and leaves Petitioner without an administrative mechanism to obtain review (Pet. ¶¶ 51-54, 76); and no adequate alternative remedy—section 679.10 provides no administrative appeal, USCIS has no power to compel state certification, and no comparable state-court process exists (Pet. ¶ 77; Code Civ. Proc., § 1086).

III. THE SECOND CAUSE OF ACTION STATES A CLAIM: RESPONDENT'S READING OF SECTION 679.10(i)(2) WOULD NULLIFY THE WRITTEN-EXPLANATION REQUIREMENT AB 1261 ENACTED.

Section 679.10, subdivision (i)(2) contains two sentences:

> "If a certifying entity does not certify a Form I-918 Supplement B certification, they shall provide a written explanation for the denial of the Form I-918 Supplement B

certification. The written denial shall include specific details of any reasonable requests for cooperation and a detailed description of how the victim refused to cooperate."

The first sentence is a stand-alone command: the entity "shall provide a written explanation for the denial." The second sentence adds a specific application: if the denial rests on non-cooperation, the explanation must include details about the requests and the refusal. The second sentence supplements the first; it does not replace it. (*Manufacturers Life Ins. Co. v. Superior Court* (1995) 10 Cal.4th 257, 274; *DuBois v. Workers' Comp. Appeals Bd.* (1993) 5 Cal.4th 382, 388 ["[A] construction making some words surplusage is to be avoided."].)

The two-sentence structure is not accidental. The first sentence is the general rule: any denial must be accompanied by a written explanation. The second sentence is a specific application for cooperation-based denials. To read the second sentence as the *only* requirement would mean that an agency could deny certification based on a failure to prove victimization—the most common and most consequential category of denial—with no explanation at all. That is precisely the result AB 1261 was enacted to prevent.

The legislative history removes any doubt. The Legislative Counsel's Digest of AB 1261—which "is printed as a preface to every bill considered by the Legislature" and is entitled to great weight in construing the enactment (*Jones v. Lodge at Torrey Pines Partnership* (2008) 42 Cal.4th 1158, 1169-1170)—describes the requirement without qualification: "The bill would require a certifying entity that does not certify the form regarding 'victim helpfulness' to provide a written explanation for the denial of the certification." (Legis. Counsel's Dig., Assem. Bill No. 1261 (2023-2024 Reg. Sess.), Stats. 2023, ch. 679.) The Digest states the written-explanation duty as a free-standing obligation attaching to *every* non-certification—not as a duty confined to cooperation-based denials. Had the Legislature intended the narrower duty Respondent proposes, the Digest would have said so. The Court may take judicial notice of the Digest as an official legislative act. (Evid. Code, § 452, subd. (c).)

The Attorney General's Information Bulletin No. 2024-DLE-05, incorporated by reference into the Petition (Pet. ¶ 32, Ex. 10), instructs law enforcement agencies statewide that the reason-for-denial "should be clearly articulated and specific." The Attorney General's construction is entitled to "substantial weight." (*Yamaha Corp. of America v. State Bd. of Equalization* (1998) 19 Cal.4th 1, 12-14.) Respondent's demurrer does not mention the Bulletin, does not distinguish it, and does not offer any competing agency interpretation.

A legally adequate explanation need not resemble a judicial opinion or discuss every item submitted. But it must state enough of the actual ground for denial to disclose whether CHP rejected the request because it found no qualifying criminal activity, no substantially similar activity, insufficient victim status, lack of helpfulness, or another legally permissible basis. CHP's letter merely restates the ultimate conclusion and does not disclose the operative reasoned basis for that conclusion. (Pet. ¶¶ 62, 82.) The ministerial character of the reason-giving duty is not in serious dispute: like the duty to investigate and make findings enforced in *Galzinski*, the duty to explain is a procedural obligation that does not depend on the merits of the underlying certification decision. (*Galzinski, supra*, 2 Cal.App.5th at pp. 1171-1173; cf. *Topanga Assn. for a Scenic Community v. County of Los Angeles* (1974) 11 Cal.3d 506, 514-515.) The second cause of action states a claim.

IV. THE THIRD CAUSE OF ACTION STATES A CLAIM: RESPONDENT'S CIRCULAR CONSTRUCTION OF SUBDIVISION (h) FLIPS THE PRESUMPTION OF HELPFULNESS ON ITS HEAD.

Section 679.10, subdivision (h) provides: "[T]here is a rebuttable presumption that a victim is helpful, has been helpful, or is likely to be helpful to the detection, investigation, or prosecution of that qualifying criminal activity, if the victim has not refused or failed to provide information and assistance reasonably requested."

Respondent argues the presumption does not apply because Petitioner has not alleged that CHP requested cooperation. (Dem. MPA at 17.) That construction would render the presumption meaningless. Under Respondent's reading: (a) the presumption applies only if the agency first requests cooperation; (b) but if the agency never requests cooperation, the presumption never attaches; (c) thus, agencies could defeat the presumption simply by never asking for help—placing the agency in sole control of whether the presumption ever operates. That is the opposite of what a statutory presumption does.

The statute expressly makes refusal or failure to provide reasonably requested assistance the relevant condition. The Petition alleges no request, refusal, or failure; it further alleges affirmative provision of information through the citizen complaint, the POST complaint, the DMV proceedings, and production of the dashcam transcript. (Pet. ¶¶ 7, 87.) CHP's denial letter contains no finding of refusal or failure to cooperate and identifies no fact that could rebut the presumption. (Pet. ¶ 62(f).) At minimum, those allegations plausibly require CHP to address the presumption rather than silently disregard it. The failure to apply a controlling statutory presumption is itself reviewable by mandamus. (Cf. *Fukuda v. City of Angels* (1999) 20 Cal.4th 805, 819.)

V. THE FOURTH CAUSE OF ACTION STATES A CLAIM: AN ACTUAL CONTROVERSY EXISTS OVER THE CONSTRUCTION OF SECTION 679.10.

Respondent argues declaratory relief is "advisory" or "moot." (Dem. MPA at 17-20.) Neither succeeds. The Petition asks the Court to declare the parties' rights with respect to a concrete controversy: whether CHP's April 20, 2026 denial letter satisfies subdivision (i)(2). (Pet. ¶ 93(c).) That is an "actual controversy relating to the legal rights and duties of the respective parties." (Code Civ. Proc., § 1060; *Linda Vista Village San Diego Homeowners Assn., Inc. v. Tecolote Investors, LLC* (2015) 234 Cal.App.4th 166, 181.)

Griset v. Fair Political Practices Commission (2001) 25 Cal.4th 688 (Dem. MPA at 19-20) does not support dismissal at the pleading stage. *Griset* held that once writ claims were adjudicated, declaratory relief was resolved by res judicata. (*Id.* at pp. 697-700.) *Griset* did not hold—and could not hold—that a declaratory cause of action is subject to demurrer merely because it might later be resolved by the writ decision. Petitioner does not seek an abstract construction of section 679.10 divorced from an actual dispute. If the Court concludes declaratory relief is duplicative of ordinary mandate, Petitioner requests leave to treat the requested declaration as ancillary to the mandate remedy rather than dismissing it without leave to amend.

VI. IN THE ALTERNATIVE, LEAVE TO AMEND SHOULD BE GRANTED.

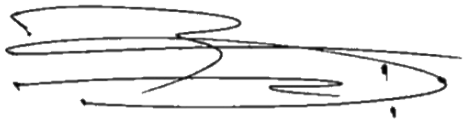
Should the Court sustain any part of the demurrer, leave to amend should be granted freely. "[I]t is an abuse of discretion for the court to deny leave to amend where there is any reasonable possibility that plaintiff can state a good cause of action." (*Kong v. City of Hawaiian Gardens Redevelopment Agency* (2002) 108 Cal.App.4th 1028, 1037.) This is the first challenge to the pleading; leave to amend has not previously been denied.

If the Court identifies any pleading gap, Petitioner can amend to: (1) clarify that the requested principal remedy is vacatur and remand for a new decision under the correct statutory standards, rather than an immediate compelled certification; (2) identify more specifically the factual basis of each alleged qualifying or substantially similar criminal activity; (3) plead with greater specificity the materials submitted to CHP and the absence of any refusal of a reasonable request for assistance; (4) distinguish the detention certificate as evidence that no accusatory pleading was filed, rather than an adjudication of probable cause; and (5) narrow the requested declaratory relief to the concrete controversy concerning the legal sufficiency of CHP's denial procedure. No prejudice would result from granting leave to amend.

CONCLUSION

The Petition does not ask the Court to decide disputed evidence or compel certification on the pleadings. It plausibly alleges that CHP denied Petitioner's request without disclosing an adequate statutory basis, without addressing the applicable helpfulness presumption, and without applying the governing framework to the submitted materials. Those allegations state claims for ordinary mandate and declaratory relief. The demurrer should be overruled in its entirety. In the alternative, any sustained claim should be granted leave to amend.

Dated: July 13, 2026



BRENDAN NGEHSI NEWANFORBI

Petitioner, In Pro Per